IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI BENCH, COURT-III

(SPECIAL BENCH)

COMPANY APPLICATION NO. (CAA) – 56(ND)/2025

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF ARRANGEMENT:

M/s. POWERLINKS TRANSMISSION LIMITED

HAVING ITS REGISTERED OFFICE AT:
10th Floor, DLF Tower – A,
District Centre – Jasola,
New Delhi – 110025

... Applicant Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 09.10.2025

CORAM:

SHRI BACHU VENKAT BALARAM DAS,
HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Ms. Shruti Kanodia, Mr. Nilesh Panda, Advs.

ORDER

PER: BACHU VENKAT BALARAM DAS, MEMBER (JUDICIAL)

1. This is a 1st Motion Application filed by the Applicant Company seeking approval of this Tribunal about the Scheme of Arrangement under Sections 230(1) of the Companies Act, 2013 read with Rule 3 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 amongst the Applicant Company and its shareholders and creditors. It is represented that the registered office address of the Applicant Company is situated in New Delhi and therefore the subject matter of the said Application falls within the jurisdiction of this Tribunal.

2. The Applicant Company, bearing CIN: U40105DL2001PLC110714 was incorporated on 05.05.2001 under the provisions of the erstwhile Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi and Haryana. The registered office address of the Applicant Company is situated at 10th Floor, DLF Tower – A, District Centre – Jasola, New Delhi – 110025. The Authorized Share Capital of the Company is Rs. 4,83,60,00,000/- and the Paid-up share capital of the Company is Rs. 4,68,00,00,000/-.

3. The Affidavit in support of the above Application has been sworn by Mr. Avinash Chander Dhawan, who has been duly authorized by the Board of Directors Applicant Company, vide Board Resolution dated 13.03.2025; and has been duly filed, along with the Application.

4. The Board of Directors of the Applicant Company in its meeting held on 13.03.2025 approved and adopted the Scheme of Arrangement subject to the approval of the shareholders and the creditors of the Applicant Company.

5. The proposed Scheme provides for reclassification of the reserves of the Company by reclassification/transfer of the amounts standing to the credit of the General Reserves to the Retained Earnings of the Company.

6. The rationale of the proposed scheme as per the Applicant Company is that it has built up reserves by transferring profits to General Reserves under applicable provisions and from the debenture redemption reserve after redemption of debentures; as on March 31, 2025, it holds Rs. 78,93,00,000/- in General Reserves, including Rs. 52,58,00,000/- transferred earlier under the Transfer of Profits Rules and Rs. 26,25,00,000/- transferred in Financial Year 2020-21; the reserves are in excess of anticipated needs, the Company has no secured creditors and only unsecured creditors being serviced, and funds in General Reserves can be utilized in accordance with law; amounts in General Reserves were transferred from profits of earlier years after taxes and depreciation which would otherwise have been available for dividends; the Board is of the opinion that the Scheme is in the best interest of stakeholders, will ensure effective utilization of excess reserves, will not prejudice members, directors, creditors, employees or the public, and is in the interest of transparency and governance and not adverse to shareholders, directors, creditors or public interest.

7. The Applicant Company submitted that as on 31.03.2025, there are only two (2) equity shareholders in the Applicant Company. The Applicant Company further submitted that both the said shareholders have furnished their respective consents to the proposed Scheme of Arrangement by way of affidavits, thereby signifying their written approval to the Scheme.

8. The Applicant Company submitted that as on 31.03.2025 the Applicant Company has no Secured Creditors and has a total of 138 Unsecured Creditors with a total outstanding unsecured debt amounting to Rs. 5,72,55,516/-. The Applicant further submitted that out of the said 138 Unsecured Creditors, creditors having unsecured debt aggregating to Rs. 5,21,65,391/-, representing 91.10 % in value of the total outstanding unsecured debt, have furnished their written consents to the proposed Scheme of Arrangement, thereby signifying their approval to the Scheme.

9. In view of the above, the Applicant Company prays the following:

"…I. Dispensation of the requirement of convening and holding a meeting of the equity shareholders of the Applicant Company since all the equity shareholders of the Applicant Company holding 100% percent of the total issued and paid-up equity share capital have given their consent to the proposed Scheme and towards dispensing with the requirement of convening and holding a meeting of equity shareholders of the Applicant Company and also to dispense with the requirement of issuance and publication of notices for the above purpose on the basis of the consent affidavits issued by the equity shareholders of the Applicant Company.

II. Dispensation of the requirement of convening and holding a meeting of the secured creditors of the Applicant Company and also to dispense with the requirement for issuance and publication of notices for the above purpose since there are NIL secured creditors of the Applicant Company.

III. Dispensation of the requirement of convening and holding a meeting of unsecured creditors of the Applicant Company since the unsecured creditors constituting 91.10% in value of the total outstanding unsecured debt of the Applicant Company have given their consent to the proposed Scheme and towards dispensing with the requirement of holding and convening a meeting of the unsecured creditors of the Applicant Company and also to dispense with the requirement for issuance and publication of notices for the above purpose on the basis of the consent affidavits issued by the unsecured creditors of the Applicant Company…"

10. That on 07.07.2025, this Tribunal had directed the Applicant to file an affidavit under Section 230(2)(a) of the Companies Act, 2013, and the same has been duly filed by the Applicant on 10.07.2025.

11. Having heard the submissions made by the Ld. Counsel(s) and having perused the records/ documents placed on record, we allow the prayer(s) of the Applicant Company as under:

    a) We allow the prayer for dispensation of meetings of its Equity Shareholders, in view of the consent affidavits given by 2 shareholders having 100% equity shareholding in value.

    b) We allow the prayer for dispensation from convening and holding the meeting of its Secured Creditors, in view of absence of any Secured Creditor.

    c) We allow the prayer for dispensation Unsecured Creditors, in view of the fact that out of 138 Unsecured Creditors, Creditors having unsecured debt aggregating to Rs. 5,21,65,391/-, representing 91.10 % in value of the total outstanding unsecured debt, have furnished their consent affidavit.

12. The Applicant Company has filed the report under Section 232(2)(c) of the Companies Act, 2013, the certificate dated 02.06.2025 issued by the Statutory Auditor confirming that the accounting treatment in the Scheme is in conformity with Section 133 of the Act, Affidavit confirming that there are no pending proceedings against the Applicant Company.

13. The prayer sought in the present Application bearing CA(CAA)-56/(ND)/2025 stands **allowed** on the aforesaid term and accordingly **disposed of**.

    The Registry is directed to serve the order to all the parties.

Sd/- **Sd/-**

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)